

The following rules of construction have been adopted by the Courts in reference to this branch of our subject in the case of wills, and, except so far as they are controlled [*213] by the positive enactments of the late Wills Act (*a*), must still be resorted to for guidance.

First, *Wherever a trust is created, a legal estate sufficient for the execution of the trust shall, if possible, be implied*: Secondly, *The legal estate limited to the trustee shall not be carried farther than the complete execution of the trust necessarily requires*.

First. As to the former rule.

1. Legal estate supplied in toto on account of the trust. —

The Court has in some instances *supplied the estate in toto*; as where a testator devised to a *feme covert* the issues and profits of certain lands *to be paid by his executors*, and it was held that the land itself was devised to the executors in trust to receive the rents and profits and apply them to the use of the wife (*b*).

(*a*) 1 Vict. c. 26, ss. 30, 31.

(*b*) *Bush v. Allen*, 5 Mod. 63; *Doe v. Homfray*, 6 Ad. & Ell. 206; and see *Oates v. Cooke*, 3 Burr. 1684; *Sir W. Black*, 543; *Doe v. Woodhouse*,

4 T. R. 89; *Murphy v. Donnelly*, 4 I. R. Eq. 111; *Stevenson v. Mayor of Liverpool*, 10 L. R. Q. B. 81; [*Davies to Jones*, 24 Ch. D. 190.]

Holmes, 4 Rich. Eq. 475; *McBride v. Smyth*, 59 Pa. St. 245; but see *McElroy v. McElroy*, 113 Mass. 509; *Watkins v. Specht*, 7 Cold. 585.

An executor sometimes receives the legal title as trustee, though there are no words to that effect, it being necessary in order to carry out the directions of the testator; *Freedley's App.* 60 Pa. St. 349; as power to repair and rent; *Kellim v. Allen*, 52 Barb. 605.

If the word "heirs" is omitted, the court will, if necessary, extend the estate so that the donor's intentions may not be defeated; *Cleveland v. Hallett*, 6 Cush. 407; *Hawkins v. Chapman*, 36 Md. 94; *Webster v. Cooper*, 14 How. 499; *Jackson v. Robins*, 16 Johns. 537; *Kirkland v. Cox*, 94 Ill. 402; *North v. Philbrook*, 34 Me. 537; a power of appointment will neither increase nor diminish the estate; *Burleigh v. Clough*, 52 N. H. 267; *Yarnall's App.*, 70 Pa. St. 342; the quantum of the estate is the same whether created by deed or will; *Watkins v. Specht*, 7 Cold. 585; *Attorney-Gen. v. Meeting House*, 3 Gray, 1; *King v. Parker*, 9 Cush. 71; *Welch v. Allen*, 21 Wend. 147; *Wright v. Delafield*, 23 Barb. 498.

As soon as an active trust ceases to be active, the statute will execute it in the cestui que trust, and this is not diminishing the estate, but simply following the provisions of the statute; *Parker v. Converse*, 5 Gray, 336; *Vallette v. Bennett*, 69 Ill. 632; *Greenwood v. Coleman*, 34 Ala. 150; *Churchill v. Corker*, 25 Ga. 479; *Stokes' App.* 80 Pa. St. 337; *Lynch v. Swayne*, 83 Ill. 336; but see *Read v. Power*, 12 R. I. 16; *Kirkland v. Cox*, 94 Ill. 402.